IN THE SUPREME COURT OF THE STATE OF KANSAS

No. 25-129788-S

GOVERNOR LAURA KELLY,
in her official capacity,
Petitioner,

v.

KANSAS ATTORNEY GENERAL KRIS KOBACH,
in his official capacity,
Respondent.

REPLY BRIEF OF PETITIONER

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INTRODUCTION

Governor Kelly, her executive agencies, and the interests of Kansans, cannot be left without any legal recourse because of a decision (or insubordination) of a lower-ranking elected officer. The Attorney General's request to solely control the State's litigation interests will result in unchecked power. As the U.S. Supreme Court put it: "[W]hen a State chooses to allocate authority among different officials who do not answer to one another, different interests and perspectives, all important to the administration of state government, may emerge." *Berger v. N.C. State Conf. of NAACP*, 597 U.S. 179, 191 (2022). Courts should grant "[a]ppropriate respect for these realities." *Id.*

The Governor respects the Attorney General's role as our State's chief legal officer. That is precisely why she requested that his office initiate litigation in pertinent cases—he is the State's preferred legal counsel. Indeed, Governor Kelly agrees with many of the basic points in the Attorney General's briefing about the allocation of litigation authority under Kansas law. But he takes an extreme position—unsupported by law or history—when he claims for himself the exclusive prerogative as kingly gatekeeper to the courthouse for any and all of Kansas government. Under his ("unitary litigation control"?) theory, all parts and officials of Kansas government must obtain the gatekeeper's blessing (even if he declines that blessing on partisan and political grounds) before the interests of Kansas may be represented in and presented to a state or federal court.

As explained previously and further elaborated below, Kansas law and history do not support the Attorney General's kingly gatekeeper theory. Neither the Attorney General nor the amici have nor are willing to answer the fundamental question here: is the Governor, as the supreme executive of Kansas, without legal recourse to the federal courts to address harm to Kansas in all circumstances unless and until the Attorney General gives his blessing to such recourse? Because of a policy decision of an inferior executive branch officer?

Instead, they repeatedly erect straw men to distract from the central question. Their position amounts to a remarkable assertion of authority for the Attorney General—one that is unlikely to serve the long-term interests of other statewide elected officials or the Legislative Coordinating Council (LCC). But our framers did not create a kingly Attorney General, and the Legislature may not do so in contravention of the Constitution.

To be clear, the Governor is not asserting or seeking a federal "unitary executive" theory (one of the other side's repeated straw men). (Defendant's Brief, 11, 18–19, 25–28; Kansas Commissioner of Insurance Brief, 1–11). Kansas has not adopted that system.[1] But it did bestow authority on the Governor as "supreme executive" and chief magistrate. The Governor seeks recognition and protection of that authority.

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[1] This seems to be the primary argument of the amici and is repeatedly asserted by the Attorney General. Governor Kelly agrees that Kansas does not have a unitary executive system and has never claimed otherwise. Indeed, in the leadup to the 1972 constitutional amendments that reorganized the executive branch, Governor Docking advocated for a unitary executive, arguing "[a]ll other executive officers now elected should be made appointive." Message of Governor Robert B. Docking to the Kansas Legislature (Jan. 16, 1969). His unitary executive approach was rejected by the amendments actually proposed and ratified.

ARGUMENTS AND AUTHORITIES

I. Precisely because Kansas does not have a unitary executive system the interests of Kansas may be represented and expressed by more than one voice in litigation.

This litigation proves that Kansas does not have a unitary executive and may speak with more than one voice in court. This Court now has briefs on the questions presented from the Governor, the Attorney General, the other statewide-elected executive officers, and the LCC. Somehow, everyone with a claim to the interests of Kansas is finding a voice in this litigation. And that is all the Governor is actually seeking here.

1. The Governor does not seek to control the Attorney General or any other constitutional executive officer. But she does seek to exercise her "supreme executive" authority and be allowed a voice in litigation that she deems in the interest of Kansas. She is not seeking to be the sole voice or the gatekeeper. She wants her voice, the voice which the Kansas Constitution bestows on her for the benefit of Kansas.

Just like the LCC and statewide-elected executive officers hired counsel to assert their interests in this case, Governor Kelly seeks authority to do the same in other litigation currently pending in federal court. Neither Governor Kelly, the other state executive officials, nor the LCC have entered litigation in the name of the State. Nor does the Governor wish to do that—that is the Attorney General's job. But, as "supreme executive," the Governor has both the responsibility and the authority to seek protection of our State's interests, in her official capacity as Governor and join litigation in order to do so.

2. Another red herring the Attorney General and amici raise is that the Kansas Constitution would "not contemplate a confusing system in which two executive branch officers would vie for control" in litigation and the Attorney General agrees it would "lead to confusion and legal difficulties." (LCC Amicus Curiae Brief, 9; Respondent's Brief, 6.) But that is the very nature of state constitutions that divide executive power among multiple officials, and quite a common result under state constitutions.

Logically, the result not only follows from constitutional text, structure, history, and precedent but it also does not present insurmountable problems. Again, this case itself is an example: is this case impossible to decide because various state actors and entities are asserting varying State interests? Or on resolving legal questions, is a federal court incapable of considering the views of both a Governor supporting the plaintiffs and an Attorney General supporting the defendants? The U.S. Supreme Court does not think so and has explicitly recognized that states may speak in federal court with more than one voice. *See Berger*, 597 U.S. at 191.

3. The Kansas Constitution creates neither queens nor kings—quite the contrary, it purposely distributes power among numerous entities and officials. And our history refutes any notion that a Governor will become royalty if allowed to assert their litigation authority. After this Court decided *Dawson* in favor of the Governor's power with respect to litigation over 114 years ago, Attorney General Dawson cried foul, claiming the Court's decision created a "one-man government." *Dawson Assails Supreme Court*, The Topeka Daily Capital, Dec. 29, 1911, p.1 (Opening Brief, Ex. 5). But until now, the Court

has not had another such case. The parade of horribles is another straw men and, like the others, chimerical.

Nor did our Constitution anoint the Attorney General a king. His arguments here seek to merge in him both counsel and client. In other words, he claims his client is the State, but he alone decides what he will or will not do as the State's lawyer. What about the rules of ethics and common sense—from what clients is the Attorney General taking direction? Apparently only himself. That would be a kingship.

The Attorney General bemoans the Governor's alleged effort (again, a mischaracterization of her argument) to consolidate executive power in herself. Yet, the Attorney General would reserve to himself an exclusive authority far greater than any authority of the Governor—the sole power to divine the State's interests. That position is a guise for the Attorney General to pursue his own partisan and political interests because his amorphous blob of a "client" cannot otherwise speak or contradict him. The Governor agrees that the Kansas Constitution does not crown kings or queens.

II. The Attorney General's statutory and common law powers do not override the Governor's constitutional role as supreme executive or her authority to bring suit in her official capacity.

Governor Kelly, the Attorney General, and the LCC all agree the Attorney General has broad statutory authority under K.S.A. 75-702 to direct and control the litigation of Kansas. But that does not answer the question here, which is the extent of the Governor's power as "supreme executive" of Kansas, as explained below:

1. The LCC and the Attorney General claim that Governor Kelly's position "trivializes" the Legislature's power to delegate litigation authority to the Attorney General. (Respondent's Brief, 17; *see generally*, LCC Amicus Curiae Brief). But this Court and Governor Kelly's actions disagree. *Dawson* recognized that through statutes the Legislature gave the Governor additional tools to exercise and fulfill her supreme executive and enforcement powers. "Among these is the assistance of the Attorney General." *State v. Dawson*, 86 Kan. 180, 119 P. 360, 364 (1911).

And certainly, as this Court's cases make clear, the Attorney General may decline requests from the Governor, other state officials, and the Legislature to engage in litigation that would require him to violate ethical duties to the courts. For example, this Court was clear in *Foster* and *Sebelius* that as "an officer of the judicial branch, under the separation of powers of the three branches of government, he was limited and restricted in his conduct before this court by the code of professional ethics." *State ex rel. Foster v. City of Kan. City*, 186 Kan. 190, 197, 350 P.2d 37 (1960); *State ex rel. Morrison v. Sebelius*, 285 Kan. 875, 887, 179 P.3d 366 (2008). The parties agree on these two points.

Indeed, these two points are precisely why the Governor requested the Attorney General's assistance in representing Kansas' interests in pending federal litigation. But he declined and actively opposed any such assistance, ostensibly because the litigation was "meritless" (even though federal courts have entered injunctions in favor of the side the Governor supports). The Governor followed the proper steps here.

Since 1861, the Legislature has expressly authorized the Governor to hire counsel to assist in representing the interests of Kansas. *See* L. 1861, ch. 58, § 2 (the Governor "may, if the public interests require it, employ such counsel as he shall deem proper, to assist in any such action or proceeding"). *See* Exhibit A — 1861 Version of K.S.A. 75-108 & K.S.A. 75-702; *accord Odds and Ends*, The Topeka Daily Capital, Feb. 28, 1883, p.4 (The Senate Judiciary Committee was of the opinion "[t]he Governor could employ counsel in any pending action."). (Opening Brief, Ex. 3).

The Attorney General's attempt to read "he" in the statute to refer to the Attorney General and not the Governor, (Defendant's Brief, 9 ["'he or she' there plainly refers to the attorney general, not the governor."]), is nonsensical. The language appears in Section 2 of the statute under the heading "GOVERNOR." The statute has separate headings for each state official and prescribes their authority, including a section much further back for the "ATTORNEY GENERAL." Furthermore, § 43 states the Attorney General "shall, also, when required by the Governor or either branch of the Legislature, appear for the State." L. 1861, ch. 58, § 43.

To support his position, the Attorney General cites a few historical documents. (Defendant's Brief, 19–24). And frankly, the Governor largely agrees with these documents. She can enforce the law with the law. That is what she is trying to do by initiating legal proceedings. Similarly, the Governor agrees the Attorney General is the primary litigator for the State and she has repeatedly attempted to cooperate with him—

but he has refused. Governor Kelly further concurs that the Attorney General brings all litigation in the name of the State.

But Attorney General Kobach relies on the views expressed by Attorney General Kellogg in communications made years after the contrary views expressed by Attorney General Davis's letter to Governor George T. Anthony. So, two early Kansas Attorney Generals had different views about their power. Fine. The dispute does not matter, however, because this Court ultimately resolved it in favor of the Governor and the views of Attorney General Davis in the *Dawson* case. *Dawson* makes clear that Davis was correct and Kellogg was wrong. And that is why neither the Attorney General nor his amici seem to want to discuss *Dawson* in their briefs (one amicus even only discusses the *Dawson* dissent—do they fear asking this court to overrule *Dawson* because they know it is on point, binding precedent?).

2. The Attorney General ironically claims he is fearful of being forced to join alleged "forum-shopped" lawsuits at the request of Governor Kelly (under K.S.A. 75-108). (Defendant's Brief, 8, 26.) For one thing, the statute says nothing about forum; it has no qualifications or restrictions based on forum. Moreover, coming from the Attorney General, the claimed concern is absurd. How many times has the Attorney General brought or joined suits nowhere near Kansas to find favorable forums when suing the prior presidential administration? *See, e.g.*, Brad Cooper, *Kobach's lawsuits against Biden: A deep look into more than 25 cases*, Sunflower State Journal (Sept. 6, 2024) ("'I'll wake up every morning having my breakfast, thinking about what our next

lawsuit against Joe Biden is going to be.'"); *see also* Marissa A. Smith, *Politicization of State Attorneys General: How Partisanship is Changing the Role for the Worst*, 108 Cornell L. Rev. 517, 536 (2023) ("The current partisan approach to multistate litigation detracts from the SAG role. Filing multistate lawsuits (or failing to do so) for solely political reasons takes SAG discretion too far.").

The Attorney General seeks to have his cake and eat it too. He has exploited and touted his ability to bring and join partisan-motivated lawsuits to challenge federal laws he does not like. But when the Governor seeks to join a challenge to federal laws that will harm tens of thousands of Kansans he balks because the lawsuits are "meritless."

The Governor recognizes the Attorney General has substantial common law powers. Those powers, however, do not vest him with authority to preclude the Governor from using her own constitutional authority to initiate legal proceedings. *See* 7 Am. Jur. 2d Attorney General § 5 (At common law, a state "attorney general does not have the right to countermand the governor where the governor is acting within the bounds of the power given to him."); 7A C.J.S. Attorney General § 51 ("[T]he attorney general is not authorized to interfere with or to direct and control litigation by lawfully appointed statutory officers acting pursuant to the governor's authority and directions.").

3. The Attorney General argues that none of the cases Governor Kelly has joined have anything "to do with the enforcement of Kansas state law." (Defendant's Brief, 21). That is simply incorrect and irrelevant. For instance, in the SNAP data lawsuit Governor Kelly asked Attorney General Kobach to join or initiate parallel proceedings in the

District of Kansas. She sought to enforce the Kansas Cybersecurity Act. *See* K.S.A. 75-7237, *et seq.*, (imposes obligations on executive branch agency heads to "be responsible for security of all data . . . under such agency's purview, irrespective of the location of the data or resources."). Federal actions she is challenging seek to override or preempt Kansas law and the rights of Kansans under Kansas law.

Furthermore, all state officials enforce both federal and state law. Federal law necessarily is supreme and becomes an inextricable part of the fabric of state law. For example, the Attorney General must comply with federal requirements in criminal proceedings in general and perhaps capital punishment proceedings in particular. The underlying crime may be found in state law but enforcing such laws necessarily requires following and enforcing federal law too.

The Governor, like all Kansas officials, must take "an oath or affirmation to support the Constitution of the United States and the constitution of this state, and faithfully to discharge the duties of [her] respective office[]." Kan. Const. art. XV, § 14. Like the Attorney General, the Governor has a "responsibility" to uphold the United States Constitution. *State v. Dawes*, 401 P.3d 190, No. 115,859, 2017 WL 3948398, at *4 (Kan. Ct. App. 2017) (unpublished opinion).

That is what the Governor seeks to do in *State of New Jersey v. U.S. Office of Management and Budget*, 1:25-cv-11816 (D. Mass., filed June 24, 2025). There, the plaintiffs seek declaratory relief, in part, because under the U.S. Constitution's Spending Clause and separation of powers principles, the defendants are unlawfully terminating

grants that allegedly no longer effectuate agency priorities even though Congress has appropriated money for an identified objective. Part of the Governor's responsibility for the "enforcement of the laws of this state" is also to comply with her oath of office which requires her to support the U.S. Constitution. The Governor recognized the defendants' unconstitutional actions, and she is obligated through her oath of office and powers as chief executive to ameliorate the harm caused. That is precisely what the Attorney General has claimed to be doing when he has joined or filed multi-state litigation in places other than Kansas; he certainly was not seeking to enforce "Kansas law" directly.

III. This Court's precedent supports Governor Kelly's position that she has litigation authority as "supreme executive" and the Attorney General is not the exclusive gatekeeper.

The briefs filed thus far cite and discuss several decisions of this Court that bear on, indeed largely control, the questions of executive power at issue here. The Attorney General and his amici downplay (and sometimes just ignore) these decisions.

These cases demonstrate the following points of law:

1. The Governor, under her supreme executive and enforcement powers, possesses the authority to initiate legal proceedings. *Cherokee Nation*, a case the Attorney General wholly fails to address, held: "[T]he Attorney General's statutory authority to take and assume control of the State's defense is subordinate to the Governor's constitutionally-granted Supreme Executive power, and statutorily-granted authority which gives him the right to represent the State and choose his counsel in defense of the action." *Cherokee Nation v. U.S. Dep't of the Interior*, 2025 OK 4, ¶ 37, 564 P.3d 58, 70 (Okla. 2025).

2. The Governor and the Legislature may direct the Attorney General to join litigation, and he may refuse only if it would be unethical to do so. The ethical constraint is grounded in the Attorney General's duties as an officer of the court, and allows him only to refuse participation in frivolous litigation; his refusal cannot be based simply on his ostensible assessment that the litigation will not (or in his view should not) succeed. That is the ethical obligation of any Kansas lawyer representing a client. *Dawson*, 119 P. at 363 ("In harmony with the provisions of the Constitution, and to provide the Governor with means to execute the laws as required by that instrument, the Legislature has declared that he may require the Attorney General to prosecute or defend for the state in any cause or matter in which the state is interested."); *Foster*, 186 Kan. at 197 ("Since he is an officer of the judicial branch, under the separation of powers of the three branches of government, he was limited and restricted in his conduct before this court by the code of professional ethics to the same extent any other lawyer would be. If, therefore, the attorney general considered the action unmeritorious, he not only had the authority, but he also had a duty to move for dismissal."); *Sebelius*, 285 Kan. at 887 (Attorney General declined to do as Legislature directed because the litigation sought was frivolous).

3. The Governor may not override the discretion of the Attorney General when he is acting as an officer of the court, but this maxim cuts both ways: the Attorney General's discretion does not include the authority to override the Governor's assessments of the interests of Kansas. The import of this is that the Attorney General's litigation interests do not have preclusive effect on the Governor's litigation interests. *Dawson*, 86 Kan. at

187–88; *State ex rel. S. Monroe & Son Co. v. Baker*, 112 Ohio St. 356, 366 (1925) ("The Governor's authority is supreme in the sense that no other executive authority is higher or authorized to control his discretion, where discretion is lodged in him, and yet it is not supreme in the sense that he may dominate the course and dictate the action and control the discretion of other executive officers of inferior rank acting within the scope of the powers, duties, and authorities conferred upon them respectively.").

CONCLUSION

The Governor seeks limited relief and authority. She wants to participate in litigation where the interests of Kansas are at stake. She gave the Attorney General the first opportunity to do so and he refused. She is not claiming the Attorney General must always do her bidding, nor any other statewide-elected official. They remain free to perform their duties as they see fit. But they cannot interfere with or prevent the Governor from doing the same. Just because the Attorney General stands down does not mean the Governor lacks the authority to stand up for Kansas.

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on December 23, 2025, a true and correct copy of the above and foregoing was e-filed with the Court's electronic filing system, which provided notice to all parties who have entered an appearance in this action.

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